

MOTOR INSURANCE CLAIM FORM

CIVIL LIABILITY

Claim No.: RC-2026-000388

Type: RC — CIVIL LIABILITY

Insurer: Seguros Meridiano, S.A.

STATUS: ACTIVE LITIGATION — SETTLEMENT IN PROGRESS

■ **NOTICE:** Active litigation. All communications with the plaintiff or their counsel must be routed exclusively through Bufete Castillo & Ramos (insurer's external counsel). The insured must not make any independent statements or offers to the plaintiff.

1. POLICYHOLDER (DEFENDANT)

Full Name:	Andrés Guillermo Matos Ortega
ID / Cédula:	007-3456789-0
Address:	Calle Presidente González 22, Mirador Sur, Santo Domingo
Policy Number:	POL-SDQ-2023-091002
Coverage Type:	Commercial Third-Party Liability + RC Legal Defense
Property Damage Limit:	DOP 1,200,000
RC Legal Defense Limit:	DOP 1,500,000
External Counsel:	Bufete Castillo & Ramos — Dra. Claudia Castillo Mena

2. AT-FAULT VEHICLE

Make / Model:	Ford F-150 XLT Pickup
Year:	2021
License Plate:	I-667788
VIN:	1FTFW1ET5MFA98765
Use at time of incident:	Personal — not commercial use

3. PLAINTIFF

Entity Name:	Importadora El Caribe, S.A.S.
Legal Representative:	Ing. Francisco Vargas Reyes
RNC:	132-78901-2
Address:	Av. Charles de Gaulle 338, Herrera, Santo Domingo Oeste
Plaintiff's Counsel:	Dr. Lionel Bautista Comprés — Bautista & Asociados
Claim Filed:	April 28, 2026

4. INCIDENT DETAILS

Incident Date:	March 12, 2026
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Incident Time:	09:33 AM
Location:	Av. Charles de Gaulle 338, warehouse entrance of Importadora El Caribe
Weather:	Clear and dry
Police Report No.:	PN-OES-2026-009877

5. INCIDENT NARRATIVE

On March 12, 2026, at approximately 09:33 AM, the insured Andrés Guillermo Matos Ortega was reversing his Ford F-150 into a parking space on Av. Charles de Gaulle. The vehicle's reversing camera malfunctioned (subsequently confirmed by dealer inspection). The F-150 reversed at moderate speed into the loading bay doors of Importadora El Caribe's warehouse, located immediately adjacent to the parking area. The impact destroyed both steel rolling doors, damaged the door frames and concrete lintel, and the momentum caused the truck to partially enter the loading bay, where it struck a rack storage unit containing imported electronic goods. The rack collapsed, destroying 47 units of merchandise. Operations at the warehouse were suspended for 11 business days pending structural assessment and door replacement. The insured cooperated with police and did not contest fault. Importadora El Caribe filed a civil suit on April 28, 2026, claiming damages exceeding the initial DPA settlement offered by the insurer.

6. JUDICIAL PROCEEDING DETAILS

Court:	Juzgado de Primera Instancia Civil de Santo Domingo Oeste — 1st Chamber
Case No.:	CIV-OES-2026-03-00678
Filing Date:	April 28, 2026
Next Hearing:	July 2, 2026
Total Claim (DOP):	2,140,000
Claim Breakdown:	Door replacement & structural repair: DOP 480,000 / Destroyed merchandise (47 units): DOP 620,000 / Business interruption (11 days): DOP 340,000 / Emergency security service: DOP 45,000 / Engineer structural assessment: DOP 55,000 / Legal fees (plaintiff): DOP 250,000 / Moral damages: DOP 350,000
Policy Property Limit:	DOP 1,200,000 — claim exceeds by DOP 940,000
Excess Exposure:	DOP 940,000 — insured personally liable for excess unless settled

7. DOCUMENTS SUBMITTED

- Insured's national ID and driver's license
- F-150 vehicle registration
- Ford dealer inspection report confirming camera malfunction
- Police report PN-OES-2026-009877
- Structural engineer assessment — Importadora El Caribe warehouse
- Steel door replacement contract and invoice (Puertas Industriales SDQ)
- Destroyed merchandise inventory list (47 SKUs) with import invoices
- Certified accountant business interruption calculation — 11 days
- Civil lawsuit filing — Case CIV-OES-2026-03-00678

- Court summons for July 2, 2026 hearing
- Engagement letter — Bufete Castillo & Ramos
- 10 photographs (vehicle, warehouse doors, collapsed rack, destroyed merchandise)
- Warehouse CCTV footage of incident (provided by plaintiff)

8. SETTLEMENT STATUS (CONFIDENTIAL)	
Insurer's initial offer:	DOP 1,200,000 (policy limit) — rejected April 15, 2026
Plaintiff's counter:	DOP 1,900,000 — under review
Insurer position:	Willing to offer DOP 1,200,000 (policy cap) plus contributory offer if insured agrees to cover DOP 300,000 personal contribution
Insured response:	Insured has engaged personal attorney — negotiating contribution
Mediation session:	Scheduled June 24, 2026 — prior to July 2 hearing
Reinsurance notification:	Submitted — excess exposure flagged

Strategic note: If mediation on June 24 fails, full trial expected October 2026. Dra. Castillo advises settling at or below DOP 1,600,000 combined (insurer + insured) to avoid court-awarded moral damages and legal fee exposure.

Policyholder

External Counsel

Legal Dept. Authorization